CHAPTER-4

THE REVISED LEAVE RULES

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CHAPTER 4

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THE REVISED LEAVE RULES

Sl.No.1

Revised Leave Rules, 1980

In exercise of the powers conferred by section 25 of the Civil Servants Act, 1973 (LXXI of 1973), the President is pleased to make the following rules, namely:-

1. **Short title, application and commencement**.– (1) These rules may be called the Revised Leave Rules, 1980.

(2) They shall apply to all civil servants other than those who were employed before the first day of July, 1978, and opted not to be governed by the Revision of Leave Rules issued under the Finance Division's Office Memorandum No.F.1(2)-Rev.I/78, dated the 21st September, 1978.

(3) They shall come into force at once.

2. **When leave earned.**– (1) All service rendered by a civil servant qualifies him to earn leave in accordance with these rules but shall not be earned during the period of leave.

(2) Any period spent by a civil servant in foreign service qualifies him to earn leave provided that contribution towards leave salary is paid to the Government on account of such period.

3. **Earning and Accumulation of leave.**– (1) A civil servant shall earn leave only on full pay which shall be calculated at the rate of four days for every calendar month of the period of duty rendered and credited to the leave account as "Leave on Full Pay", duty period of fifteen days or less in a calendar month being ignored and those of more than fifteen days being treated as a full calendar month for the purpose.

(2) If a civil servant proceeds on leave during a calendar month and returns from it during another calendar month and the period of duty in either month is more than fifteen days, the leave to be credited for both the incomplete months shall be restricted to that admissible for one full calendar month only.

3. There shall be no maximum limit on the accumulation of such leave.

4. **Civil Servants in Vacation Department.**– A civil servant in vacation department may earn leave on full pay:-

(a) When he avails himself of full vacation in a calendar year_____ at the rate of one day for every calendar month of duty rendered;

(b) When during any year he is prevented from availing himself of the full vacation _____ as for a civil servant in a non-vacation department for that year; and

(c) When he avails himself of only a part of the vacation _____as in (a) above plus such proportion of thirty days as the number of days of vacation not taken bears to the full vacation.

5. **Leave on full pay.**– The maximum period of leave on full pay that may be granted at one time shall be as follows:–

(a)	Without medical certificate.....	120 days
(b)	With medical certificate.....	180 days
	plus	
(c)	On medical certificate from leave account in entire service.....	365 days

Note.– Under the Prescribed Leave Rules, 1955, leave on half average pay could be converted into leave on full pay on the strength of Medical Certificate upto a maximum of twelve months in terms of leave on full pay in the whole service. The account of this kind of leave was separately maintained in column 14 (a) of the leave account under the said Rules. Such leave availed of by the civil servants before the introduction of these rules, shall be debited against the maximum limit of 365 days fixed under this rule.

6. **Leave on Half Pay.**– (1) Leave on full pay may, at the option of the civil servant, be converted into leave on half pay, the debit to the leave account will be at the rate of one day of the former for every two days of the latter, fraction of one-half counting as one full day's leave on full pay.

(2) The request for conversion of leave referred to in sub-rule (1) shall be specified by the civil servant in his application for the grant of leave.

(3) There shall be no limit on the grant of leave on half pay so long as it is available by conversion in the leave account.

7. **Leave to be Applied, *etc.*, in Terms of Days.**– Leave shall be applied for, expressed, and sanctioned, in terms of days.

8. **Carry Forward of Existing Leave.**– All leaves at credit in the account of a civil servant on the first day of July, 1978, shall be carried forward and expressed in terms of leave on full pay and the leave account in such cases shall, with effect from the first day of July, 1978, or, in the case of a civil servant who was on leave on that date, with effect from the date of his return from leave, be recast as under:-

(i) Leave on average pay:

(a)	1 month.....	30 days
(b)	1 day.....	1 day

(ii) Leave on half average pay:

(a)	1 month.....	15 days
(b)	2 days	1 day

Note.– Fractions, if any, shall be ignored.

9. **Extraordinary leave (leave without pay).**– (1) Extraordinary leave without pay may be granted on any ground upto a maximum period of five years at a time; provided that the civil servant to whom such leave is granted has been in continuous service for a period of not less than ten years, and, in case a civil servant has not completed ten years of continuous service, extraordinary leave without pay for a maximum period of two years may be granted at the discretion of the head of his office:

Provided that the maximum period of five years shall be reduced by the period of leave on full pay or half pay, if granted in combination with the extraordinary leave.

(2) Extraordinary leave upto a maximum period prescribed under sub-rule (1) may be granted, subject to the conditions stated therein, irrespective of the fact whether a civil servant is a permanent or a temporary employee.

*(3) Extraordinary leave may be granted retrospectively in lieu of absence without leave.

10. **Recreation leave.**– Recreation leave may be granted for fifteen days once in a calendar year, the debit to the leave account may, however, be for ten days leave on full pay:

Provided that such leave shall not be admissible to a civil servant in a vacation department.

11. **Leave not due.**– (1) Leave not due may be granted on full pay, to be offset against leave to be earned in future, for a maximum period of three hundred and sixty-five days in the entire period of service, subject to the condition that during the first five years of service it shall not exceed ninety days in all.

(2) Such leave may be converted into leave on half pay.

(3) Such leave shall be granted only when there are reasonable chances of the civil servant resuming duty on the expiry of the leave.

(4) Such leave shall be granted sparingly and to the satisfaction of the sanctioning authority. **[ ].

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* Added vide Finance Division's Notification No. F.1(45)-R 4/81, dated 13-2-1982.
** Omitted vide Finance Division's Notification No. S.R.O. 218(KE)/93, dated 24-10-1993.

12. **Special leave.–** (1) A female civil servant, on the death of her husband, may be granted special leave on full pay, when applied for a period not exceeding one hundred and thirty days.

(2) Such leave shall not be debited to her leave account.

(3) Such leave shall commence from the date of death of her husband and for this purpose she will have to produce death certificate issued by the competent authority either alongwith her application for special leave or, if that is not possible, the said certificate may be furnished to the leave sanctioning authority separately.

13. **Maternity leave.**– (1) Maternity leave may be granted on full pay, outside the leave account, to a female civil servant to the extent of ninety days in all from the date of its commencement or forty-five days from the date of her confinement, whichever be earlier.

(2) Such leave may not be granted for more than three times in the entire service of a female civil servant except in the case of a female civil servant employed in a vacation department who may be granted maternity leave without this restriction.

(3) For confinements beyond the third one, the female civil servant would have to take leave from her normal leave account.

(4) The spells of maternity leave availed of prior to the coming into force of these rules shall be deemed to have been taken under these rules.

(5) Maternity leave may be granted in continuation of, or in combination with, any other kind of leave including extraordinary leave as may be due and admissible to a female civil servant.

(6) Leave salary to be paid during maternity leave shall be regulated, as for other leave, in accordance with the formula contained in the Finance Division Office Memorandum No. F. 9(16)-R. 1/69, dated the 26th July, 1969, read with its Office Memorandum of even number dated the 28th November, 1969.

(7) The leave salary to be paid during maternity leave will, therefore, remain un-affected even if an increment accrues during such leave and the effect of such an increment will be given after the expiry of maternity leave.

14. **Disability Leave.**– (1) Disability leave may be granted, outside the leave account on each occasion, upto a maximum of seven hundred and twenty days on such medical advice as the head of office may consider necessary, to a civil servant, other than a seaman or a civil servant in part-time service, disabled by injury, ailment or disease contacted in course or in consequence of duty or official position.

(2) The leave salary during disability leave shall be equal to full pay for the first one hundred and eighty days and on half pay of the remaining period.

15. **Leave Ex-Pakistan.–** (1) Leave ex-Pakistan may be granted on full pay to a civil servant who applies for such leave or who proceeds abroad during leave, or takes leave while posted abroad or is otherwise on duty abroad, and makes a specific request to that effect.

(2) The leave pay to be drawn abroad shall be restricted to a maximum of three thousand rupees per month.

(3) The leave pay shall be payable in Sterling if such leave is spent in Asia other than Pakistan and India.

(4) Such leave pay shall be payable for the actual period of leave spent abroad subject to a maximum of one hundred and twenty days at a time.

(5) The civil servants appointed after the 17th May, 1958, shall draw their leave salary in rupees in Pakistan irrespective of the country where they spend their leave.

(6) Leave ex-Pakistan will be regulated and be subject to the same limits and conditions as prescribed in rules 5, 6 and 9.

16. **Leave preparatory to retirement.**– (1) The maximum period upto which a civil servant may be granted leave preparatory to retirement shall be three hundred and sixty-five days.

(2) Such leave may be taken, subject to availability, either on full pay, or partly on full pay and partly on half pay, or entirely on half pay, at the discretion of the civil servant.

*[(3) An officer of BPS-21 or BPS-22 who, on or after the 19th day of February, 1991, opts to retire voluntarily after he has completed twenty-five years of service qualifying for pension may be granted leave preparatory to retirement equal to entire leave at his credit in his leave account on full pay or till the date on which he completes the sixtieth years of his age, whichever is earlier:

Provided that such officer shall not be entitled to conversion of leave preparatory to retirement on full pay under rule 6 into leave on half pay].

[17. **Encashment of refused leave preparatory to retirement.– (1) If in case of retirement on superannuation or voluntary retirement on completion of thirty years qualifying service a civil servant cannot for reasons of public service, be granted leave preparatory to retirement duly applied for in sufficient time, he will in lieu thereof be granted lump-sum leave pay for the leave refused to him subject to a maximum of ***[three hundred and sixty five days leave on full pay]].

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* Added vide Finance Division O.M. No. F.1(8)-R.4/89, dated 30-5-1991.

** Subs. vide Finance Division Notification No. SRO 281(I)86, dated 10-3-1986.

*** Subs.vide Finance Division (Regulation Wing) Notification No.SRO 70(KE)/2012 dated 29-8-2012.

(2) Such leave can be refused partly and sanctioned partly but the cash compensation shall be admissible for the actual period of such leave so refused not exceeding *[three hundred and sixty five days].

(3) The payment of leave pay in lieu of such refused leave may be made to the civil servant either in lump-sum at the time of retirement or may, at his option, be drawn by him month-wise for the period of leave so refused.

(4) For the purpose of lump-sum payment in lieu of such leave, only the "Senior Post Allowance" will be included in "Leave Pay" so admissible.

(5) In case a civil servant on leave preparatory to retirement dies before completing *[three hundred and sixty five days] of such leave, his family shall be entitled to lump-sum payment equal to the period falling short of *[three hundred and sixty five days].

18. **Power to refuse leave preparatory to retirement, *etc*.**– (1) Ordinarily, leave preparatory to retirement shall not be refused.

(2) All orders refusing leave preparatory to retirement to a civil servant and recalling a civil servant from leave preparatory to retirement shall be passed only by the authorities specified below:

**[(i)	For civil servants of BPS-20 and above.	Prime Minister
(ii)	For civil servants in BPS-17 to 19	Appointing Authority prescribed in rule 6 of the Civil Servants (Appointment, Promotion and Transfer) Rules, 1973; and
(iii)	For civil servants in BPS-16 and below	As above in (ii).]

(3) The authorities specified in sub-rule (2) shall not delegate these powers to any other authority.

**[(4) All proposals regarding refusal of Leave Preparatory to Retirement to the Officers in BPS-17 and above shall be submitted to the respective appointing authorities with detailed justification at least three months before the officer is due to proceed on such leave].

***[18-A. **Encashment of leave preparatory to retirement**.– (1) A civil servant may fifteen months before the date of superannuation or thirty years qualifying service on or after the 1st July, 1983, at his option, be allowed to encash his leave preparatory to retirement if he undertakes in writing to perform duty in lieu

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* Subs.vide Finance Division (Regulation Wing) Notification No.SRO 70(KE)/2012 dated 29-8-2012.

** Subs. vide Finance Division's Notification No.F.1(2)/R.4/2000 dated 21-2-2001.

*** Subs. vide Finance Division Notification No. F.1(73)-R.4/84, dated 18-12-1984.

of the whole period of three hundred and sixty-five days or lesser period which is due and admissible].

*[Provided that a civil servant who does not exercise the option within the specified period shall be deemed to have opted for encashment of LPR]. This amendment shall be effective from the 5th March, 1990.

**Provided further a civil servant appointed or posted as Officer on Special Duty with or without an assignment of duty, shall be deemed to have performed duties in lieu of the period of LPR within the meaning of this rule.

***[(2) In lieu of such leave, leave pay may be claimed for the actual period of such leave subject to a maximum of @[three hundred and sixty five days].

@[(2A) Encashment of leave preparatory to retirement (LPR) not exceeding three hundred and sixty five days shall be effective from the first day of July,2012 and shall, for the entire period of leave refused or opted for encashment, be applicable to a civil servant retired or, as the case may be, retiring on or after the first day of July,2012, provided such leave is available at his credit subject to a maximum of three hundred and sixty five days.

(2B) The encashment of LPR shall also be applicable to employees of the autonomous and semi-autonomous bodies under Administrative control of the Federal Government which have adopted basic pay scales scheme and these rules in toto].

@[(3) If at any time during such period, leave is granted on account of ill health supported by medical certificate or for performance of Hajj, the amount of cash compensation on account of leave pay shall be reduced by an amount equal to the leave pay for the period of leave so granted].

(4) The civil servant shall submit the option to the authority competent to sanction leave preparatory to retirement, who shall accept the option and issue formal sanction for the payment of cash compensation.

[(5) For the purpose of payment in lieu of such leave.–

(a) the rate of pay shall be the rate admissible @@[at the time the leave pay is drawn],

(b) the leave pay may be drawn at any time for the period for which duty has already been rendered; and

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* Added vide Finance Division Notification No. F.1(1)-R-4/90-320, dated 11-3-1990.

** Added vide Finance Division (Regs. Wing) SRO No. (1)/2007, dated 27.10.2007.

*** Subs. vide Finance Division's Notification No. SRO 1022 (I)/85 dated 14-10-1985.

@ Added and Subs. vide Finance Division Notification No. S.R.O. 70(KE)/2012, dated 29-8-2012.

@@ Subs. vide Finance Division Notification No. F.(1)73-R-4/84 dated 12-03-1986.

(c) only the "Senior Post-Allowance" will be included in the leave pay as admissible].

[*] [(6) Leave pay for the purpose of encashment of LPR shall be computed on the basis of pay and allowances reckonable towards pension as shown in the last pay certificate of a civil servant.]

[**]19. **In-service death, *etc*.–** (1) In case a civil servant dies, or is declared permanently incapacitated for further service by a Medical Board, while in service, a lump-sum payment equal to leave pay upto [***][three hundred and sixty five days] out of the leave at his credit shall be made to his family as defined for the purposes of family pension or, as the case may be, to the civil servant.

(2) For the purpose of lump-sum payment under sub-rule (1), only the "Senior Post Allowance" will be included in the leave pay" so admissible".

20. **Reasons need not be specified, *etc*.–** (1) It shall not be necessary to specify the reasons for which leave has been applied so long as that leave is due and admissible to a civil servant.

(2) Leave applied for on medical certificate shall not be refused:

Provided that the authority competent to sanction leave may, at its discretion, secure a second medical opinion by requesting the Civil Surgeon or Medical Board, as the case may be, to have the applicant medically examined.

21. **Leave when starts and ends.–** Instead of indicating whether leave starts or ends in the forenoon or afternoon, leave may commence from that day following that on which a civil servant hands over the charge of his post and may end on the day preceding that on which he resumes duty.

22. **Recall from leave, *etc*.–** (1) If a civil servant is recalled to duty compulsorily with the personal approval of the head of his office from leave of any kind that he is spending away from his headquarters, he may be granted a single return fare plus daily allowance as admissible on tour from the station where he is spending his leave to the place where he is required to report for duty.

(2) In case the civil servant is recalled to duty at headquarters and his remaining leave is cancelled, the fare then admissible shall be for one way journey only.

(3) If the return from leave is optional, the civil servant is entitled to no concession.

23. **Overstayal after sanctioned leave, *etc*.–** (1) Unless the leave of a civil servant is extended by the head of his office, a civil servant who remains absent

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[*] Added *vide* Finance Division Notification No. S.R.O. 70(KE)/2012, dated 29-8-2012.

[**] Amended vide Finance Division Notification No. F.I (34) R-4/85, dated 16-9-1985, effective from the date of issue.

[***] Subs. vide Finance Division Notification No. S.R.O No. 11(KE)/2013 dated 18-02-2013.

after the end of his leave shall not be entitled to any remuneration for the period of such absence, and without prejudice to any disciplinary action that may be taken against him, double the period of such absence shall be debited against his leave account.

(2) Such debit shall, if there is insufficient credit in the leave account, be adjusted against future earning.

24. **Any type of leave may be applied.–** A civil servant may apply for the type of leave which is due and admissible to him and it shall not be refused on the ground that another type of leave should be taken in the particular circumstances, for example, a civil servant may apply for extraordinary leave or leave on half pay even if leave on full pay is otherwise due and admissible to him, or he may, proceed on extraordinary leave followed by leave on half pay and full pay rather than that on full pay, half pay, and without pay.

25. **Combination of different types of leave, *etc*.–** One type of leave may be combined with joining time or with any other type of leave otherwise admissible to the civil servant:

Provided that leave preparatory to retirement shall not be combined with any other kind of leave.

26. **Civil servant on leave not to join duty without permission before its expiry.–** Unless he is permitted to do so by the authority which sanctioned his leave, a civil servant on leave may not return to duty before the expiry of the period of leave granted to him.

27. **Leave due may be granted on abolition of post, *etc*.–** (1) When a post is abolished, leave due to the civil servant, whose services are terminated in consequence thereof, shall be granted without regard to the availability of a post for the period of leave.

(2) The grant of leave in such cases shall, so long as he does not attain the age of superannuation, be deemed automatically to have also extended the duration of the post and the tenure of its incumbent.

28. **Manner of handing over charge when proceeding on leave, *etc*.–** (1) A civil servant proceeding on leave shall hand over the charge of his post, and if he is in BPS-16 and above, he shall, while handing over charge of the post sign the charge relinquishment report.

(2) If leave ex-Pakistan has been sanctioned on medical grounds, the civil servants shall take abroad with him a copy of the medical statement of his case.

29. **Assumption of charge on return from leave, *etc*.–** (1) A civil servant, on return from leave, shall report for duty to the authority that sanctioned his leave and assume charge of the post to which he is directed by that authority

unless such direction has been given to him in advance.

(2) In case he is directed to take charge of a post at a station other than that from where he proceeded on leave, travel expenses as on transfer shall be payable to him.

30. **Account offices to maintain leave account.–** (1) Leave account in respect of a civil servant shall be maintained as part of his service book.

(2) The accounts offices shall maintain the leave accounts of civil servants of whom they were maintaining the accounts immediately before the coming into force of these rules.

31. **Leave to lapse when civil servant quits service.–** All leaves at the credit of a civil servant shall lapse when he quits service.

32. **Pay during leave.–** (1) Leave pay admissible during leave on full pay shall be the greater of:–

(a) the average monthly pay earned during the twelve complete months immediately preceding the month in which the leave begins; and

(b) the rate equal to the rate of pay drawn on the day immediately before the beginning of the leave.

(2) When leave on half pay is taken, the amounts calculated under clauses (a) and (b) of sub-rule (1) shall be halved to determine the greater of the two rates.

*[(3) A civil servant shall be entitled to the leave pay at the revised rate of pay if a general revision in pay of civil servants takes place or an annual increment occurs during the period of leave of the civil servant].

33. **Departmental leave.–** (1) Departmental leave may be granted to civil servants drawing pay in BPS 1 to 9 in the Basic Pay Scale and serving in the Survey of Pakistan or in any such other department as may be notified by the Finance Division on the conditions laid down in this rule.

(2) Departmental leave may be granted only to a civil servant whose services are temporarily not required and no leave other than leave-not-due is admissible.

(3) A subsistence allowance at such rate as the officer granting the leave may think fit but not exceeding half pay may be granted during departmental leave.

(4) The allowance shall be payable only on return to and resumption of duty after the expiration of the leave, whether taken by itself or combined with

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* Added vide Finance Division Notification No. F.1(6)R-4/93, dated 21-9-1994.

departmental leave without pay:

Provided that if a civil servant dies while on departmental leave, the amount of allowance, if any, otherwise admissible upto date of his death shall be paid to his heirs.

(5) Departmental leave with subsistence allowance may be granted during the recess by the head of the party or office to which the civil servant belongs only when the officer granting the leave considers it desirable to re-employ him in the ensuing field season and the leave so granted may, in special cases, be extended by the Surveyor-General upto a maximum of five hundred and forty days at a time.

(6) Departmental leave with subsistence allowance may be granted at times other than the recess for not more than one hundred and eighty days at a time by a Director or Deputy Director, Survey of Pakistan, provided such leave is granted in the interest of public service or work and not at the civil servant's own request.

(7) Leave granted may in special cases be extended by the Surveyor-General upto a maximum of three hundred and sixty five days at a time.

(8) Leave on medical certificate shall in no circumstances be regarded as granted in the interest of public service or work.

(9) Departmental leave without pay may be granted by the Surveyor-General in continuation of departmental leave with subsistence allowance in special cases as authorized by the Finance Division by a general or special order.

(10) When a civil servant holds a post in which the Surveyor-General considers that he is unlikely to be eligible for departmental leave in future, the Surveyor-General may, by special orders in writing, declare that, with effect from such date not being earlier than the civil servant's last return from departmental leave, as the Surveyor-General may fix, any balance of leave at debit in the civil servant's leave account shall be cancelled, and all leave earned after such date will be credited as due in the civil servant's leave account, and all leave taken after such date, including departmental leave with allowances, if any, will be debited to it.

(11) Departmental leave may be combined with any other kind of leave which may be due.

34. **Sick leave to a seaman.–** A civil servant serving as an officer, warrant officer or petty officer on a government vessel may, while undergoing medical treatment for sickness or injury, either on his vessel or in hospital, be granted leave on full pay, outside his leave account, for a period not exceeding forty-five days by the master or the captain of the vessel provided that the civil servant is not malingering or his ill health is not due to such of his own action as cause or aggravate disease or injury.

35. **Leave to disabled seaman.–** A civil servant referred to in rule 34 who is disabled while performing his duty may be allowed leave on full pay for a

maximum period not exceeding ninety days on each occasion if:-

(a) the disability is duly certified by a government Medical Officer,
(b) the disability is not due to the civil servant's own carelessness, and
(c) the vacancy caused by his absence is not filled up.

36. **Leave earned by civil servant employed in non-continuous establishment.–** (1) A civil servant employed in a non-continuous establishment may be granted only earned leave and disability leave as admissible to, and subject to the conditions laid down for, a civil servant employed in a continuous establishment and no other kind of leave shall be admissible to such civil servant.

(2) A civil servant who is transferred from a non-continuous establishment to a continuous establishment and *vice versa* shall carry forward the balance of earned leave at his credit on the date of his transfer.

Explanation.– In this rule, "non-continuous establishment" means an establishment which does not function throughout the year and "continuous establishment" means an establishment which functions throughout the year.

37. **Quarantine leave.–** (1) Quarantine leave is in the nature of extra casual leave and a substitute shall normally not be employed during the absence of civil servant on such leave:

Provided that where the exigencies of service are compelling, the head of the office may employ a substitute for reasons to be recorded in writing.

(2) A civil servant may be granted quarantine leave outside his leave account to the extent that his authorized medical attendant recommends and the period of such leave shall be treated as duty with full pay and allowances of the post held by him at the time of proceeding on leave.

38. **Leave application, its sanction, *etc*.–** (1) Except where otherwise stated, an application for leave or for an extension of leave must be made to the head of office where a civil servant is employed and, in the case of the head of office, to the next-above administrative authority and the extent of leave due and admissible shall be stated in the application.

(2) An audit report shall not be necessary before the leave is sanctioned.

(3) When a civil servant submits a medical certificate for the grant of leave, it shall be by an authorized medical attendant *[or other registered medical practitioner] in the form attached to these rules.

*[(3-A). No civil servant who has been granted leave on medical certificate may return to duty without first producing a medical certificate of fitness in the form attached to these rules.]

(4) Leave as admissible to a civil servant under these rules may be sanctioned by the head of a Ministry, Division, Department, Office or any other

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* Ins. & added *vide* Finance Division Notification No. 847-R.4/83, dated 19-11-1983.

officer authorized by him to do so and, when so required, leave shall be notified in the official Gazette.

(5) In cases where all the applications for leave cannot, in the interest of public service, be sanctioned to run simultaneously, the authority competent to sanction leave shall, in deciding the priority of the applications, consider:-

(i) whether, and how many applicants can, for the time being, best be spared;

(ii) whether any applicants were last recalled compulsorily from leave; and

(iii) whether any applicants were required to make adjustment in the timing of their leave on the last occasion.

39. **Hospital leave and study leave.–** Subject to these rules, the provisions regarding hospital leave and study leave contained in the Fundamental Rules and Supplementary Rules shall apply to the civil servants.

*[40. **Relaxation of Rules.–** The Federal Government may, in a case of hardship, relax all or any of the provision of these Rules:

Provided that such relaxation shall not be less favourable to any benefit available to a Civil Servant under these Rules].

[Authority:- Finance Division S.R.O. No.1313(I)/80, dated 20-12-1980, as amended from time to time].

*Added *vide* Finance Division Notification No. F.1(4)-R.4/92, dated 01-10-1992.

Form-I

FORM OF MEDICAL CERTIFICATE

Signature of applicant

MEDICAL CERTIFICATE FOR CIVIL SERVANTS RECOMMENDED FOR LEAVE OR EXTENSION

I,.....after careful ..... personal examination of the case, hereby certify that ..... whose signature is given above, is suffering from ..... and I consider that a period of absence from duty of ..... with effect from ..... is absolutely necessary for the restoration of his health.

Dated, the.....

Government Medical Attendant
[*]or
Other Registered Medical Practitioner.

Form-II

[[**]] FORM OF MEDICAL CERTIFICATE OF FITNESS TO RETURN TO DUTY

I, ... do hereby certify that I have carefully examined ..... of the ..... department, and find that he has recovered from his illness and is now fit to resume duties in Government service. I also certify that before arriving at this decision I have examined the original medical certificate(s) and statement(s) of the case (or certified copies thereof) on which leave was granted or extended, and have taken these into consideration in arriving at my decision.

Dated, the .....

Government Medical Attendant
**or*
Other Registered Medical Practitioner].

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[*] Added vide Finance Division O.M No. F.1(22)R.4/82, dated 22-12-1982.
[**] Added *vide* Finance Division Notification No. 847-R. 4/83 dated 19-11-1983.

G.F. R.13

APPLICATION FOR LEAVE

Notes.-Items 1 to 9 must be filled in by all applicants. Item 12 applies only in the case of Government servants of BPS 16 and above.

1. Name of applicant
2. Leave Rules applicable
3. Post held
4. Department or Office
5. Pay
6. House rent allowance, conveyance allowance or other compensatory allowances drawn in the present post
7. (a) Nature of leave applied for
   (b) Period of leave in days
   (c) Date of commencement
8. Particular Rule/Rules under which leave is admissible
9. (a) Date of return from Last Leave
   (b) Nature of leave
   (c) Period of leave in days

Dated:-_____

Signature of applicant

10. Remarks and recommendation of the Controlling Officer
11. Certified that leave applied for is admissible under Rule.....and necessary conditions are fulfilled.

Signature……...
Dated _____ *Designation……...*

12. Report of Audit Officer

Dated_____

Signature……..
Designation……..

13. Orders of the sanctioning authority certifying that on the expiry of leave the applicant is likely to return to the same post or another post carry the compensatory allowances drawn by him

Dated _____ *Signature……*
Designation……

Form-III

FORM A.T.C. 8

FORM OF LEAVE ACCOUNT UNDER THE REVISED LEAVE RULES, 1980

[Approved *vide* Finance Division's letter No. F. 1 (3)-Rev. 1/78, dated 18-1-1979]

Leave Account of Mr./Miss/Mrs.----------

Date of commencement of service----------

Date of attaining the age of superannuation----------(*N.B.* – Instructions for filling in the form are printed on the reverse).

Government/Department served under	PERIOD OF DUTY				Leave earned on full pay @ 4 days for each calendar month.	Leave at credit (Column 21+6)	PERIOD		LEAVE TAKEN										Total leave (Columns 10+11+12+ 14+15+17+19)	Balance on 1-7-1978 return from leave (Cols. 7–20)	Remarks	ATTESTATION
									Leave on full pay without medical certificate subject to maximum of 120 days & 365 days in case of LPR.	Leave of full pay on medical certificate subject to maxi- mum of 180 days	Leave on full pay on medical certificate subject to a maximum of 365 days in entire service.	LEAVE ON HALF PAY		Recreation leave of 15 days in a year but 10 days to be debited.	LEAVE NOT DUE		ABSENCE					
												In terms of half pay	In terms of full pay		In terms of half pay	In terms of full pay	Actual No. of days	No. of days debitable (double the actual number)				
	From	To	YMD	Full calen- dar month	Days	Days	From	To	Days	Days	Days	Days	Days	Days	Days	Days	Days	Days	Days	Days		
1	2	3	4	5	6	7	8	9	10	11	12	13	14	15	16	17	18	19	20	21	22	23

Sl.No. 2

Explanatory Instructions for Filling Up the Leave Account Form

This leave account will be maintained for all civil servants of the Federal Government who were in service on the 1st July, 1978 including those who were on leave on that date and have not opted to retain the existing leave rules and all others, who enter service on or after 1st July, 1978.

2. All leave at credit in the account of a civil servant who was in service on the 1st July, 1978 shall be converted in terms of leave on full pay at the following rates:-

(i) L.A.P*.

(a) 1 month .....30 days
(b) 1 day .....…...1 day

(ii) L.H.A.P*.

(a) 1 month .....15 days
(b) 2 days .....….....1 day

[Fractions if any to be ignored]

3. The leave account shall commence with an opening entry "Due on 1-7-1978" or in the case of a civil servant, who was on leave on 1-7-1978 with effect from the date of his return from leave. For the purpose of computing the leave at credit, the service upto 30-6-1978 will be taken into account. The leave due in terms of leave on full pay in days will be noted in Column No. 21.

4. (i) In calculating the leave earned on full pay at the rate of 4 days for every calendar month the duty period of 15 days or less in a calendar month shall be ignored and those of more than 15 days shall be treated as a full calendar month for the purpose. If a civil servant proceeds on leave during a calendar month and returns from it during another calendar month and the period of duty in either month is more than 15 days, the leave to be credited for both the incomplete months will be restricted to that admissible for one full calendar month only. There shall be no maximum limit on accumulation of this leave.

(ii) The provision in (i) above will not apply to a vacation department. In such case, a civil servant may earn leave on full pay

(a) when he avails himself of full vacation in a calendar year _____ at the rate of one day for every calendar month of duty rendered;

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* LAP means Leave on Average Pay, LHAP; Leave on Half Average Pay.

(b) when during any year he is prevented from availing himself of the full vacation_____ as for a civil servant in a non-vacation department for that year; and

(c) when he avails himself of only a part of the vacation _____ as in (a) above plus such proportion of thirty days as the number of days of vacation not taken bears to the full vacation.

5.(a) Leave on full pay may be converted into leave on half pay at the option of the civil servant; the debit to the leave account will be at the rate of one day of the former for every two days of the latter, fraction of one half counting as one full day's leave on full pay. The request for such conversion shall be specified by the civil servant in his application for the grant of leave.

(b) There shall be no limit on the grant of leave on half pay so long as it is available by conversion in the leave account.

6. L.P.R. on full pay will be noted in column No. 10 while that on half pay in columns No. 13 and 14.

7. Leave not due may be granted on full pay to be offset against leave to be earned in future for a maximum period of 365 days in the entire period of service, subject to the condition that during the first five years of service it shall not exceed 90 days in all. Such leave may be converted into leave on half pay. It shall be granted only when there are reasonable chances of the civil servant resuming duty.

8. The grant of Special Leave, Maternity Leave, Disability Leave, Extraordinary Leave, payment of leave pay for refused L.P.R. upto a maximum of *180 days, lump-sum payment equal to full pay upto *180 days out of leave at credit made to the family of a government servant, whose death occurs while in service, Seaman Sick Leave, Departmental Leave, Study Leave, Hospital Leave and Quarantine Leave shall be noted in Column No. 22, Maternity Leave, other than three times in entire service shall, however, be debited to the relevant column of the Leave Account.

9. When a government servant applies for leave Columns 2 to 7, shall be filled in showing the period of duty upto the date preceding that on which a government servant intends to go on leave. The full calendar months to be noted in Column 5 shall be worked out on the lines indicated in (4) above.

10. When a government servant returns from leave, Columns 8 to 23 shall be filled according to the nature of leave. If leave not due is availed of the minus balance to be shown in Column No. 21 should be written in red ink.

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*Now 365 days.

Sl.No. 3

Clarification of Withdrawal of Request of LPR/Retirement After Sanction/ Notification

Refer to the correspondence resting with M/o Defence (Defence Division)'s O.M.No.3/25/D-11(CSH)/2006 dated 01-04-2011 on the above subject and to clarify that:-

i) After the withdrawal of Establishment Division OM No.14/2/2009-R-2 dated 25-08-1996 vide their OM No. 14/2/2002-R-2 dated 14-07-2011, a Government servant may withdraw his option of voluntary retirement within the period of LPR and after retirement, there is no option available to the Government servant for re-joining the duty.

ii) An individual, who goes on 365 days LPR and after availing a part thereof, he rejoins his duty. In such cases, the period of leave availed by an individual be adjusted in the order of leave on full pay, leave on half pay and extraordinary leave (leave without pay). Later on, on attaining the age of superannuation, he agains opts for 365 days LPR **OR** leave encashment of 180 days in lieu of 365 days LPR. Such option of an individual may be treated as a fresh case and he will be allowed LPR or encashment thereof in toto.

[*Authority:*- Finance Division's O.M. F.1(1)r-4/2007(Vol-II) dated 17-11-2011].

3.1 Further Clarification of Withdrawal of Request of LPR/Retirement After Sanction/Notification

Refer to Finance Division's O.M.No.F.1(1)R-4/2007-(Vol.II) dated 17-11-2011 on the above subject and to state that it has been decided in consultation with Establishment Division that a Government Servant can withdraw option of voluntary retirement, during the period for which encashment has been applied/granted, subject to the following conditions:-

i. He/She may withdraw his/her option of voluntary retirement before retirement matures;

ii. It is binding on a government servant to return any amount of leave pay received by him/her, in lieu of encashment of LPR for that period;

iii. Later on, on attaining the age of superannuation, if he/she again opts for 365 days leave encashment in lieu of 365 days LPR, such option of an individual may be treated as a fresh case and he/she will be allowed encashment of LPR in toto.

[Authority:- Finance Division's O.M. No.F.1(1)R-4/2007-Vol-II(Pt) dated 06-10-2015].

3.2 Option for Encashment of L.P.R.

Reference Finance Division's O.M. No.F.1(19)R-3/83, dated 11-7-1984 *(Annex)*. It is stated that in case the leave of any kind including Extra-Ordinary Leave without pay is taken during the last 15 or 12 months by a retiring government servant, who opts for encashment of L.P.R. except on grounds contained in the above reference, the period of such leave will be reduced from 180 days or lesser period for which the encashment is allowed.

[Authority.- Finance Division O.M. No.F.1(73)R-4/84, dated 10-12-1989].

(ANNEX)

[Copy of Finance Division O.M. No.F.1(19)R.3/83, dated 11-7-1984].

Reference para 25, of the Scheme of Basic Pay Scale contained in Finance Division O.M. No.1(1)Imp/83, dated 18.8.1983, according to which the encashment of L.P.R., which was previously admissible to civil servants only if L.P.R. was refused in public interest, would now be admissible to the employees concerned at their own option. In this connection, various points have been raised for clarification. It has, therefore, been decided to clarify the points of doubt as in the following paragraphs.

2. Under the earlier orders, the concession of encashment of L.P.R. on retirement on superannuation or on completion of 30 years qualifying service was admissible upto the maximum of leave pay for *365 days under rule 17(i) of the Revised Leave Rules, 1980. The words "leave salary" and *"one year" used in para 25 of the Scheme of Basic Pay Scales contained in Finance Division's O.M. No.F.1(1)-Imp/83, dated 18.8.1983, shall, therefore, mean "leave pay" and *"three hundred and sixty five days" respectively, as in para 17 of Revised Leave Rules 1980.

3. A civil servant, who wishes to forego his L.P.R. in favour of cash compensation, shall exercise his option to this effect in writing 15 months prior to the date of retirement, and submit it to the authority competent to sanction for the payment of cash compensation.

4. After having exercised the option for encashment of L.P.R., the government servant shall have to perform duty during the entire period upto the date of retirement and cannot, save as stated in para 5 below, avail himself of any kind of leave, during the last 15 months of his service if the leave, at his credit was 365 days or less, and during the last 12 months of his service if the leave at his credit was more than 365 days. Provided that in the later case, leave can be taken prior to the period of the last 12 months only to the extent that the balance leave at credit does not fall below 365 days.

5. The competent authority may, where it is satisfied that the leave applied for is unavoidable or is fully justified, e.g, in cases of illness, supported by medical certificate, or for performance of ‘Hajj’ etc, grant leave to an employee during the last 15 or 12 months of his service, as the case may be, in accordance

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* Amended *vide* Finance Division Notification No. S.R.O. 70(KE)/2012, dated 29-8-2012.

with para 4 above. In such a case, the amount of cash compensation shall be reduced by an amount equal to the leave pay for half of the period of leave taken. For example, if an employee, who has opted for encashment of L.P.R., has taken 60 days of leave, his cash compensation equal to 30 days leave pay would be forfeited.

6. It is requested that the cases of encashment of L.P.R. may be regulated according to the clarifications contained in this Office Memorandum.

3.3 Encashment of LPR on Premature Retirement

The matter of allowing of encashment of L.P.R on premature retirement, on completion of 31 years qualifying service, has been under consideration of the Finance Division. It is clarified that encashment of LPR upto *365 days will also be admissible to a civil servant who renders 31 years or more qualifying service and who seeks voluntary retirement on three months' notice in terms of Finance Division's O.M No. 591-R.4/83, dated 04-09-1983 treating the last year of his service (including the notice period) as duty performed during LPR. It is further clarified that such a government servant would also be entitled to encash his LPR upto maximum of 365 days subject to the same terms and conditions as laid down in rule *18-A of the Revised Leave Rules, 1980' as amended from time to time read with Finance Division's O.M No. F.1 (19) R.3/83, dated 11-07-1984 and F.1 (73) R.4/84, dated 10-12-1989 respectively.

[Authority:- Finance Division (Regulations Wing) O.M. No.F.1(8)R-4/90, dated 2-6-1991]

3.4 Encashment of L.P.R

Reference Finance Division's Office Memorandum No. F.1(8)r-4/90, dated 2nd June,1991 on the subject. It is to state that the competent authority has been pleased to withdraw the O.M referred to above with immediate effect.

[**Authority:-** Finance Division (Regulations Wing) O.M. No.F.1(2)R-4/2001, dated 12-03-2002]

3.5 Encashment of L.P.R (Clarification)

Reference Finance Division's Office Memorandum No. F. 1 (2) R-4/2001, dated March, 12, 2002 on the subject. Through the aforesaid OM, this Division's earlier OM No. F.1(8)-R.4/90, dated 2nd June, 1991 has been withdrawn being contradictory to rule 18-A (1) or Revised Rules, 1980. The cancellation of OM dated 02-06-1991 has created the impression as if the facility of encashment of LPR has been discontinued is not correct. The OM dated 02-06-1991, stipulates that encashment of LPR is admissible on completion of 31 years service. On the other hand, under rule 18-A(1), encashment of LPR is admissible on superannuation or thirty years qualifying service. Therefore, with the cancellation of this Division OM No. F.1(8)-R.4/90, dated 02-06-1991, the cases regarding encashment of LPR may be decided under rule 18-A (1) of Revised Leave Rules, 1980.

[Authority:- Finance Division (Regulations Wing) OM No. F.1(2) R-4/2001, dated 27-03-2002].

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* Substituted *vide* Finance Division's Notification S.R.No.70(KE)/2012 dated 29-8-2012.

3.6 Encashment of LPR/Amendment in the Revised Leave Rules 1980 in Respect of Leave Encashment/Grant of Encashment of LPR for 365 Days Instead of 180 Days

Sub rule (2A) inserted in Rule 18-A of the Revised Leave Rules, 1980 vide Finance Division SRO 70 (KE)/2012 dated 29-08-2012 clearly says that encashment of Leave Preparatory to Retirement (LPR) not exceeding three hundred and sixty five days shall be effective from the first day of July 2012,and shall, for the entire period of leave refused or opted for encashment, be applicable to a Civil servant retired or, as the case may be, retiring on or after the first day of July,2012, provided such leave is available at his credit subject to a maximum of three hundred and sixty five days. A civil servant, whose last working day was 30th June, 2012 and who stood retired w.e.f. 01-07-2012, is not entitled to the encashment of leave preparatory to retirement(LPR) @ 365 days in lieu of 365 days (LPR).

[Authority:- Finance Division's (Regulation Wing) O.M.No.F.1(7)R-4/2004-Encashment dated 28-01-2013].

Sl.No. 4

Permission to Seek Private Employment by Civil Servants During LPR Within Two Years of Retirement

A proforma is required to be filled in by civil servants who may be desirous or seeking private employment during LPR or within two years of the date of the retirement, in accordance with Section 14 of the Civil Servants Act, 1973.

[Authority:- Establishment Division's O.M. No.8/1/81-D.4/D.3, dated 17-07-2002].

Annexure
Revised Proforma
(See. Sl. No. 4)

APPLICATION FORM FOR SEEKING PRIVATE EMPLOYMENT DURING LPR/WITHIN TWO YEARS OF RETIREMENT

1. Name: ……..

2. Appointments held during last 5 years of service:

Post(s) held with BPS	Department(s)/Organization(s)	Total Period of Stay	
		From	To

3. Nature of Retirement (*):……..
4. Date of Proceeding on LPR: ……
5. Date of Retirement: ……..
6. Particulars of Private Employee: ……

   (i) Name of organization : ……
   (ii) Law under which registered: ……..
   (iii) Composition of the Board of Directors: ……
   (iv) Nature of business *etc*: ……
   (v) Location of Head Office: …….

7. Designation of the Post and Pay Offered: …….

8. Nature of duties: ……..

9. Whether the firm had official dealings with any of the department in which the officer served during the last five years. If so please give details:

10. Any other information

Signature
with Designation/Grade
of last post held and Organization

(i) On attaining the age of superannuation.
(ii) Voluntary retirement on completion of 25 years service.
(iii) Premature retirement, under Section 13(1)(i) of Civil Servants Act, 1973.
(iv) Compulsory retirement on account of disciplinary action.
(v) Retirement on medical grounds.

(Additional sheet(s) may be added where necessary)

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* Pl. indicate one of the following:
(a) Voluntary retirement on completion of 25 years service.
(b) Retirement on attaining the age of superannuation (60 Years).

4.1 Arrangements for Providing Substitutes for Officers Proceeding on L.P.R

The maximum period upto which a civil servant may be granted LPR shall be 365 days.

2. To make suitable arrangement for the replacement of retired personnel, a list should in the beginning of a calendar year be prepared of such officers and other employees who may be due to retire during that calendar year and early next year. Those officers/employees should accordingly be asked in writing whether or not they intend to proceed on LPR and if so by which date. Thereafter, action for providing suitable substitute should be initiated. On this principle, action may be taken much in advance during the year preceding the year during which officers are due to retire.

3. Establishment Division is to be contacted as early as possible by (or through) the Ministry/Division concerned for providing a substitute if he belongs to an administrative group/service which is controlled by the Establishment Division.

[Authority:- Establishment Division's O.M. No.8/53/78-F.1, dated 31-10-1978].

Sl.No. 5

Special Instructions Relevant to Leave of Civil Servants: Absence from Headquarters

Absence from headquarters during leave, holidays or casual leave without obtaining permission from the competent authority is irregular. It is necessary for the government servant concerned to take permission of the authority which sanctioned the leave before leaving his headquarters station and keep his controlling officer advised of the change of address.

[Authority.- Estt. Division's O.M. No. 23(49)-RI(2)/54, dated 29-12-1954].

5.1 Leaving Headquarters During Holidays or Casual Leave

The orders contained in the Ministry of Finance Office Memorandum No.46-F. 23 (49)-RI (2)/54, dated the 29th December, 1954 are also applicable to the cases of government servants who leave their headquarters during holidays or while they are on casual leave.

[Authority.- Estt. Division's O.M. No. 7/6/55-SE-II, dated 13-6-1955].

5.2 Bar Against Leaving Place of Duty Without Waiting for Sanction of Leave

The civil servants applying for grant of leave are not to leave their offices/places of duty without waiting for actual sanction of the leave applied for. Attention is invited to F. R. 67 wherein it is clearly stated that leave cannot be claimed as of right. Thus an application for leave should not be anticipated as

grant of leave. It should therefore, be brought home to the civil servants serving under the control of Ministries/Divisions that if they apply for grant of leave, they must wait for sanction of leave and should not leave the place of their duty before the leave applied for is actually granted by the competent authority. Non-compliance of these instructions might warrant action on account of misconduct under the relevant rule.

[Authority:- Establishment Division's O.M. No.10/22/83-R.2, dated 12-08-1985]

5.3 Procedure for Grant of Leave to High Officials and to the Officers Belonging to Groups/Services/Cadres Controlled by Establishment Division

Under rule 38 of the Revised Leave Rules, 1980, leave is to be sanctioned by the head of the Ministry, Division, Department, Office or any other officer authorized by him to do so and in the case of the head of office by the next above administrative authority. While the officers belonging to Group/ Service/Cadre controlled by the Establishment Division shall apply and be granted leave as provided for in rule 38, copies of notifications granting leave to such officers shall invariably be endorsed to Establishment Division. Where a Ministry/Division required a substitute in place of the officer belonging to the Groups/Services/Cadres controlled by the Establishment Division who is desirous of proceeding on leave of duration of 90 days or more, leave may be granted after consulting the Establishment Division.

2. In the case of grant of leave to a Secretary General, Secretary or Acting Secretary to the Federal Government, or to Additional Secretary/Joint Secretary Incharge of a Ministry/ Division or Heads of department in BPS-22 and civil servants of equivalent status serving as heads of the autonomous and semi-autonomous bodies/corporations under the administrative control of the Federal Government, the following procedure will be followed:–

(i) The application for leave on full pay upto a period of 30 days will be submitted through the Minister to the Prime Minister for orders and a copy of the notification granting leave shall be endorsed to the Secretary, Establishment Division.

(ii) The application for leave on full pay for a period of more than 30 days would be submitted through the Secretary, Establishment Division by the Minister to Prime Minister for obtaining the Prime Minister's orders.

3. The Provincial Governments will continue to exercise the powers to grant leave, including leave ex-Pakistan, upto 120 days to the officers of *All Pakistan Unified Grades/Services/Cadres working under them. Applications for leave in excess of 120 days shall be referred to the Establishment Division.

4. The Establishment Division shall be consulted prior to the grant of leave to officers of the *APUG and OMG for a period exceeding four months.

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*All Pakistan Services (Change in Nomenclature) Rules, 1973, notified vide SRO 1307(I)/73 dated 14-09-1973, have been repealed vide SRO 89(I)/2014 dated 14-02-2014, whereby all notifications and instructions issued on the subject from time to time were *mutatis mutandis* amended.

5. When an officer is transferred from one department to another, no leave should be sanctioned to him by the department from which he is transferred. In such cases, leave can be allowed only by the authority under whose control the transferred officer has to go.

6. Ministries/Divisions are to ensure compliance of the above instructions also by the Attached Departments, Subordinate Offices, Autonomous/ Semi-autonomous Bodies/Corporations under their administrative control.

[Reviewed by Establishment Division's O.M. No.10/22/83-R.2, dated 18-11-1985 vide Establishment Division's O.M. No.10/13/2001-R.2, dated 01-03-2001]

Sl.No. 6

Grant of Leave to Government Servants for the Period Spent in Giving Evidence Otherwise than on Behalf of the State in a Criminal/Civil Case not Connected with their Official Duties

A question has arisen as to whether a government servant who is summoned by a court of law to give evidence otherwise than on behalf of the State is to be treated on duty or on leave. It has been decided in consultation with the Ministry of Finance that in such cases the government servant concerned should be granted leave.

[Authority.- Estt. Division's O.M. No. 846/59-E, XII, dated 17-11-1959].

Sl.No. 7

Grant of Leave to Officers Transferred to Other Posts

It has been decided that, in future, an officer transferred to another post, either in the Federal Secretariat, its Attached or Subordinate Offices, or to a post under a Provincial Government on reversion from the *Centre, should not be allowed leave for any period, except by the authority to whose control he is transferred.

[Authority.- Estt. Division's O.M .No.6 (21)/60-E.IX, dated 8-10-1960].

7.1 Sanction and Notification of Leave of Officers Transferred to Other Posts

Doubts have arisen as to who should sanction and notify the leave in the case of officers referred to in Establishment Division Office Memorandum No. 6(21)/60-E.IX, dated the 8th October, 1960. The intention is that after the date of issue of transfer orders, leave should be allowed and notified only by the authority under whose control the officer transferred has to go.

[Authority.- Estt. Division's O.M. No. 8/20/60-F.I, dated 30-11-1961].

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* Federal Government.

Sl.No. 8

Grant of Extraordinary Leave (Leave Without Pay) under Rule 9 of the Revised Leave Rules, 1980

It is clarified after consultation with Law and Justice Division, Establishment Division and Auditor General of Pakistan that EOL of five years is admissible to a government servant for each 'spell of' ten years of continuous service. If, however, a civil servant has not completed ten years of continuous service on each occasion/time, EOL without pay for a maximum period of two years may be granted at the discretion of the head of his Ministry/Division/Department.

2. The maximum leave availed during one continuous period should also not exceed 5 years.

3. The cases already decided by the Ministries/Divisions need not be re-opened.

[Authority:- Finance Division's Notification No.F.1(68)/R.4/84, dated 02-07-1991]

8.1 Grant of (EOL) Without Pay and Conversion of EOL into Another Kind of Leave

The following special features of the EOL need to be kept in view while dealing with such cases:-

(i) The pay and allowances are inadmissible during the EOL. Annual increments also are inadmissible under FR-26.

(ii) The period of the EOL is not counted towards pension under CSR 361.

(iii) The EOL can cover a period of unauthorized absence; either under an administrative order vide rule 9(3) of Revised Leave Rules 1980 or on a court's directions.

(iv) The period of EOL is not considered as period spent on duty under FR-9 (6).

2. Due to the special characteristics of EOL stated above, no rule has been framed for its conversion into another kind of leave retrospectively because it not only involves payment of salary for the previous EOL period but would also involve change in the directions/orders of the authority. Moreover, a government servant under rule 24 of Revised Leave Rules 1980, has been given the option to apply for any kind of leave. The leave sanctioning authority has no power to change the nature of leave. This option, once exercised by the government servant, is considered final. Sometimes, cases for retrospective conversion of EOL into another kind of leave are moved on the basis of CSR 232 (3) despite the fact that this rule does not specifically deal with EOL. Similarly, Government decision (3) under FR-87 cannot be used for conversion of EOL into another kind of leave because the said rule governs the leave salary. In the light of foregoing,

it has been decided that EOL cannot be converted into any other kind of leave, retrospectively.

[Authority:- Finance Division (Regulation Wing)'s O.M. No.F.1(12) R.4/97, dated 7-1-2002]

8.2 Employment of Government Servants with International Organizations, Foreign Governments on the Basis of Leave DUE/EOL

Ministries/ Divisions/Provincial Governments have to obtain, through Establishment Division, approval of the competent authority in case of employment of government servants with international organizations/UN specialized agencies/foreign governments on the basis of leave due/EOL. Ministries/Divisions/Provincial Governments must ensure compliance with the existing requirement to obtain clearance of all such cases of employment of government servants (BPS-17 and above/equivalent) with international organizations/UN specialized agencies/foreign governments from the SSB* and approval for BPS-20 and above officers from the Prime Minister.

2. The cases of officers in BPS-16 and below/equivalent may be approved by the administrative Secretary of the Ministry/Division.

[Authority:- Establishment Division's O.M. No.1/65/90-T.IV, dated 11-07-2000]

Sl.No. 9

Grant of Special Leave to Khuddam-ul-Hajjaj

'Khuddam-ul-Hajjaj', (servants of the pilgrims) who remain away from their respective duties to work as khuddam, (servants) may be granted special leave on full pay for that period outside their leave account.

[Authority:- Finance Division's O.M. No.F.1(15) R.4/82, dated 11-08-1982]

Sl.No.10

Leave Reserve under the Section Officers' Scheme and its Proper Utilization

The posts of Section Officers, Assistants, Stenotypists, Upper Division Clerks and Lower Division Clerks created under the Section Officers' Scheme include posts in the leave reserve which is equal to ten per cent of the sanctioned strength in those **grades. The position in regard to the utilization of the leave reserve and of filling up of the leave vacancies in the **grades in which leave reserve has been provided, is as follows:-

(i) No leave vacancy in the **grades in which leave reserve has been provided, should normally be filled.

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* Special Selection Board.

** BPS/Post(s).

(ii) In case there is a deficiency in the *grades in which leave reserve has been provided, or where the number of persons on leave is in excess of the number of persons actually available in the leave reserve and it is difficult for the Ministry concerned to discharge its responsibilities efficiently without additional staff, officiating arrangements may be made as a special case, after consulting the Financial Adviser in the case of non-gazetted staff and the Ministry of Finance in the case of Gazetted officers.

(iii) All officers and staff employed in the *grades in which leave reserve has been provided should be asked, towards the end of each calendar year to indicate the approximate date on which and the period for which they wish to proceed on leave during the next year. On the basis of the information so collected, a leave programme for the year should be prepared in such a way that, at any given time, the number of persons on leave does not, as far as possible, exceed the leave reserve in the *grade concerned. The officer and staff available against the leave reserve would thus be available to attend to the work of those granted leave. If there are occasional gaps when the number of officers/staff wishing to proceed on leave is less than the leave reserve, the services of the officers/staff available as leave reserve may be utilized for special items of work which the Ministry may be called upon to undertake, the clearance of arrears in overworked Sections or re-arranging and weeding the records of the Ministry.

(iv) Leave reserve should be treated as an integral part of the *grades concerned and the persons who are appointed against that reserve should not be labelled as such. The work in a Ministry or Division should, however, be divided in such a way as to facilitate the proper utilization of leave reserve on the lines suggested above.

(2) This issues with the concurrence of the Ministry of Finance.

[Authority.- Estt. Division's O.M. No.3/1/60-SR, dated 1-2-1961].

10.1 Leave Reserve Section

The review of the staff position carried out by the Management Services Wing has revealed that practically all Ministries/Divisions have converted Leave Reserve Section Officers into regular Sections by assigning to them specific items of work which are of regular nature. It defeats the very objective for which Leave Reserve has been created.

2. In order to ensure the proper utilization of the Section Officers and their ancillary staff in the Leave Reserve, it has been decided that following arrangements should be made in various Ministries/Divisions:-

* BPS

(i) Experienced Section Officers along with their ancillary staff who could dispose of all types of cases, should be selected to work as Leave Reserve Officers, and no regular work should be assigned to them ;

(ii) The Leave Reserve Section Officer(s) at Rawalpindi /Islamabad or Karachi should be attached directly with the Secretary or other senior officer(s) at the station; and

(iii) When not employed in leave vacancies, the Section Officers should, along with their ancillary staff, attend to the difficult cases of other Sections which may be assigned to them by the Secretary or the senior officer(s) with whom they have been attached.

[Authority.- Estt. Division's O.M. No.3/1/60-C-III, dated 4-10-1961].

10.2 Utilization of Leave Reserve Section

It is obligatory on the Ministries/Divisions to observe the instructions contained in the Establishment Division Office Memoranda No. 3/1/60-SR, dated the 1st February, 1961, and No. 3/1/60-C.II, dated the 4th Oct., 1961 regarding the utilization of Leave Reserve Section Officers. In this connection, it may be mentioned that in their meeting held on the 14th November, 1961, the 'Standing Committee for Consideration of Ideas for Improvement in Administration' observed that the Leave Reserve Officers were primarily to be used for the purpose for which they were meant and should not be absorbed in the normal organisation of the Ministries and that when not employed against leave vacancies they should be used as a striking force to deal with arrears in any section or sudden pressure of work. In view of this, the Ministry of Commerce, etc. are requested to re-organize their Sections in such a way as not to entrust the Leave Reserve Section Officers with regular Sections. However, if they require any additional post of Section Officer they should take up the matter in the normal way. Attention in this connection is also invited to the Establishment Division's Office Memorandum No. 5/34/59-SR, dated the 13th February, 1961 *(Annex)* regarding procedure for creation/abolition of posts of Section Officers.

[Authority.- Estt. Division's O.M. No.3/1/60-C-III, dated 5-2-1962].

(ANNEX)

[Copy of Estab. Div. OM No. 5/34/59-SR dated 13th February, 1961].

Procedure for creation/abolition of posts of Section Officers: For some time past, the Establishment Division have been considering the question of issuing sanction letters regarding the creation of posts of Section Officers. It has now been decided in consultation with the Ministry of Finance that such sanction letters should be issued by the administrative Ministries concerned in the usual manner.

2. It has further been decided that prior concurrence of the Establishment Division should invariably be obtained before any additional post is created or any existing post is abolished in the cadre of the Section Officer.

10.3 Filling-up of Vacancies on Proceeding of Section Officers on LPR

It has since been decided in consultation with the Ministry of Finance that leave vacancies caused due to Section Officers proceeding on leave preparatory to retirement, may be filled in accordance with the rules.

[Authority.- Estt. Division's O.M. No. 3/1/60-C.III, dated 6-4-1962].

10.4 Leave and Training Reserve

A Leave Reserve equal to ten per cent of the duty posts in the Section Officers Grade has been provided to each Ministry/ Division. Instructions regarding the utilization of the services of Section Officers in this Reserve are contained in the Establishment Division Office Memoranda No. 3/1/60-SR, dated the 1st February, 1961 and No. 3/1/60-C.III, dated the 4th, October 1961 and 5th February, 1962. These instructions, inter alia, provide that Leave Reserve Section Officers should not be absorbed in the regular sections of the Ministries. However, it has been observed that with the passage of time these instructions have been lost sight of by almost all the Divisions who have converted the Leave Reserve into regular Sections. The result is that when any Section Officer proceeds on leave, no Leave Reserve Section Officer becomes available to attend to his work. This has defeated the very purpose for which the Leave Reserve was created, i.e., to have a pool of Officers whose services could immediately become available without any dislocation when any Section Officer proceeded on leave.

2. In addition to the Leave Reserve, each Division has been provided with a Training Reserve, equal to ten per cent of the duty posts in the Section Officers' Grade. This reserve is mainly intended to accommodate the Section Officers (Probationers) after the completion of their training at the Secretariat Training Institute and till their absorption against regular vacancies on the successful completion of their probationary period. The officers in this Reserve are also required to attend to the work of those Section Officers who proceed on training (e.g. to the S.T.I., the NIM and training courses abroad etc.). Establishment Division's Office Memorandum No. 2/2/62-CIII, dated the 30th November, 1962 refers in this connection. It is observed that like the Leave Reserve, the Training Reserve has also been absorbed in the regular set-up of the Divisions. Therefore, this also has militated against the very concept of having a Training Reserve with the result that Ministries/Divisions are usually unable to make available their officers for training when required to do so on the plea that arrangements against the resultant vacancies cannot be made. This obviously retards the process of training of Section Officers which is so necessary for improving efficiency in the Secretariat.

3. In order to ensure proper utilization of the Leave and Training Reserves, all the Ministries are requested to review the position and limit the number of their regular Sections to the number of duty posts in the Section Officers Grade sanctioned for them.

[Authority.- Estt. Division's O.M. No.3/1/60-C-III, dated 17-6-1967].

Sl.No.11

Grant of Study Leave Outside Pakistan

The grant of study leave outside Pakistan admissible under F.R. 84 read with Appendix No. 9 of F.R. & S.R. Volume II was held in abeyance. Subject to the conditions laid down in the succeeding paragraphs the ban imposed on the grant of study leave is lifted.

2. In the case of professors, teachers and professional experts like engineers and doctors, study leave may be granted subject to the usual conditions provided necessary facilities in the particular field of study are not available in Pakistan.

3. In the case of other government servants, study leave should be granted, in consultation with the Financial Adviser concerned, in exceptional cases, after it has been established that the proposed course of study shall be beneficial in relation to the functions of the Ministry/Division *etc.* and that suitable and/or equivalent facilities for such a study are not available within the country.

[Authority:- Finance Division's O.M No.F.10(3)-R-I/65, dated 20-09-1966].

11.1 Study Leave for L.L.M. (Shariah and Law) Courses of Islamic University Islamabad

Under F.R. 84 read with Appendix 9 of F.Rs. & S.Rs Vol.II that study leave is admissible to permanent officers in BPS 16 and above for the study of scientific, technical or similar problems, or to undertake special courses of instruction. The study leave may be granted to permanent officers of BPS 16 and above to study the course of L.L.M. (Shariah & Law) introduced by the Islamic University, Islamabad, subject to the limit and other conditions as laid down in Appendix 9 of F. Rs & S. Rs Vol. II and orders issued thereunder.

*[Authority:-*Finance Division's O.M. No. F.1(39)R-4/81-801, dated 17-12-1981].

11.2 Study Leave Rules Prescribed by the President (F.R. 84)[*]

Study leave may be granted as additional leave to Government servants for the study of scientific, technical or similar problems, or in order to undertake special courses of instruction.

2. These rules are not intended to meet the case of Government servants deputed to other countries at the instance of Government, either for the performance of special duties imposed on them or for the investigation of specific problems connected with their technical duties. Such cases will continue to be dealt with on their merits under the provisions of Rules 50 and 51 of the Fundamental Rules.

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* *See* FR 84 at pages 127-128, Compilation of FRs and SRs Vol. I, First Edition (Second Reprint), 1978. SR 22 above is at *Appendix* 9 (FR 84), Vol. II, pages 65-68, Appendices & Forms, Second Edition Revised (corrected upto September, 1985 of the book *ibid*).

3. The rules shall apply to the Department of Archaeology, Public Health and Medical Department, Botanical Survey, Civil Veterinary Department, Factory Departments, Geological Survey of Pakistan, Agricultural Department, Meteorological Department, Railways Division (Traffic, Locomotive & Engineering Branches), Education Department, Pakistan Public Works Department, Pakistan Forest Institute and National Council for Conservation of Wild Life (except in respect of continental tours, to which special rules apply).

4. The rules may be extended by the authorities empowered to sanction study leave to any Government servant, including a Government servant of a Provincial Service, not belonging to any of the departments mentioned above, in whose case if the sanctioning authority is of the opinion that leave should be granted in the public interest to pursue a special course of study or investigation of a scientific or technical nature.

5. The powers granted by these Rules to the Government of Pakistan or to local Governments may be delegated by them to the Ambassador for Pakistan subject to any condition they may think fit to impose.

6. Extra leave on half pay for the purpose of study leave may be taken either in or outside Pakistan. It may be granted to a Government servant of any of the Departments named above by the Local Government under whom he is serving provided that when a Government servant borne permanently on the cadre of one Province or department is serving temporarily in another Province or department the grant of leave is subject to the conditions:-

(a) that the sanctioning authority can take local arrangements to carry on his work in his absence; and

(b) that the sanction of the Province or department to which he is permanently attached is obtained before leave is given.

7. Study leave should not ordinarily be granted to Government servants of less than five years' service or to Government servants within three years of the date at which they have the option of retiring, or, if they have the option of retiring after 25 years' service, within three years of the date at which they will complete 25 years' service. Nor should it be granted to Government servants who are about to retire on proportionate pension.

8. Ministries and Divisions of the Government of Pakistan may grant study leave to Government servants under their administrative control, subject to the restrictions which apply to the powers of a Local Government.

[*]9. The study leave should be granted with due regard to the exigencies of the public service. In no case should the grant of this leave, in combination with leave other than extraordinary leave or leave on medical certificate, involve absence of a Government servant for more than forty-eight months from regular duties nor should it be granted with such frequency as to remove him from contact with his regular work or to cause cadre difficulties owing to his absence on leave. The study

[*] Amended *vide* Finance Division (Regulation Wing) Notification No. F.1(2)R.4/2003 dated 5-6-2004.

leave if taken on different occasions, shall not exceed forty-eight months in entire service of a Government servant.

10. A Government servant whose study leave in combined with any other kind of leave should be required to take his period of study leave at such a time as to retain, at its conclusion, a balance of other previously sanctioned leave sufficient to cover the period spent in returning to duty.

11. When a Government servant has been granted a definite period of study leave and finds subsequently that his course of study will fall short of the sanctioned period to any considerable extent, his absence from duty should be reduced by the excess period of study leave unless he produces the assent of the sanctioning authority in Pakistan to his taking it as ordinary leave.

12. Except as provided in Rule 13, all applications for study leave should be submitted with the Audit Officer's certificate to the Head of the Department through the prescribed channel and the course or courses of study contemplated and any examination which the candidate proposes to undergo should be clearly specified therein. If the course of study is abroad the Head of the Department should also forward to the Ambassador for Pakistan a copy of the approved programme of study. If it is not possible for the Government servant to give full details, as above, in his original application, or if, at leaving Pakistan he wishes to make any changes in the programme which has been approved in Pakistan, he should submit particulars as soon as possible to the Ambassador for Pakistan. In such cases he should not unless prepared to do so at his own risk, commence the course of study, nor incur any expenses in connection therewith, until he receives approval to the course through the Ambassador.

13. (1) Government servants on leave ex-Pakistan who wish to convert part of the leave into study leave or to undertake a course of study during leave, should before commencing study and before incurring any expenses in connection therewith, submit a programme of their proposed course of study to the Ambassador for Pakistan. The programme should be accompanied by an official syllabus of the course, if one is available, and by any documentary evidence that the particular course, or examination, has the approval of the authorities in Pakistan. In the absence of such evidence the programme may, if approved by the Ambassador, be proceeded with, but no study leave allowance will be admissible until the concurrence of the authority concerned in Pakistan is received.

(2) Government servants on leave ex-Pakistan who desire to have it extended for purposes of study under these Rules, should address the Ambassador for Pakistan but in addition to furnishing a statement of proposed study they must support their application with documentary evidence of their having obtained the approval of the authorities concerned in Pakistan to their applying for an extension of leave. They must also produce documentary evidence of the concurrence of the authority concerned in Pakistan to the grant of study leave or study allowance or both.

14. No course of study will be recognized as qualifying for the grant of study allowance, or for study leave for any other purpose, unless it has been approved in at least broad outline by the sanctioning authority in Pakistan in

accordance with Rules 12 and 13 above, and unless, in cases where it has not been found possible to submit full particulars to the authorities in Pakistan, it has been approved in detail by the Ambassador before it is begun.

15. A study allowance will be granted for the period spent in prosecuting a definite course of study at a recognized Institution or in any definite tour of inspection of any special class of work, as well as for the period covered by any examination at the end of the course of study. In no case will subsistence allowance be granted in addition to study allowance and ordinarily travelling expenses will not be paid, but in exceptional cases claims will be considered on their merits by the Government of Pakistan or the Local Government.

16. Study allowance will be admissible up to 14 days for any period of vacation. A period, during which a Government servant interrupts his course for his own convenience, cannot be considered as vacation. Study allowance may be given at the discretion of the Government of Pakistan or a local Government for any period up to fourteen days at one time during which the officer is prevented by sickness duly certified by a medical practitioner from pursuing the sanctioned course of study. In the case of a Government servant retiring from the service without returning to duty after a period of study leave, the study allowance will be forfeited. If the Government servant is under civil leave rules the study leave will be converted into ordinary leave to the extent of the ordinary leave standing to his credit at the date of retirement. Any balance of the period of study leave mentioned above which cannot be so converted will be excluded in reckoning service for pension.

17. Government servants granted study leave are ordinarily required to meet the cost of fees paid for courses of study. In exceptional cases, the Government of Pakistan or the Local Government will be prepared to consider proposals that such fees should be paid by Government.

18. On completion of a course of study a certificate on the proper form (which may be obtained from the Ambassador), together with certificates of examinations passed or of special study shall be forwarded to the authority which sanctioned the leave. In the case of a definite course of study at a recognized Institution, the study allowance will be payable by the Ambassador or in Pakistan, as the case may be, on claims submitted by the Government servant from time to time, supported by proper certificates of attendance. When the programme of study approved under Rule 12 does not include or does not consist entirely of such a course of study, the Government servant shall submit to the Ambassador or to the authority in Pakistan which sanctioned his leave, as the case may be, a diary showing how his time has been spent, and a report indicating fully the nature of the methods and operations which have been studied, and including suggestion as to the possibility of applying such methods or operations to Pakistan. The sanctioning authority in Pakistan will decide whether the diary and report show that the time of the Government servant has been properly employed, and will determine accordingly for what period the study allowance referred to in Rule 15 may be granted.

19. Study leave will count as service for promotion and pension, but not for leave. It will not affect any leave which may already be due to a Government servant; it will count as extra leave on half average pay and will be taken into account in reckoning the aggregate amount of leave on half average pay taken by the Government servant towards the maximum period admissible under the Fundamental Rules*.

20. During study leave a Government servant will draw half pay. A Government servant may, subject to the approval of the proper authorities being obtained as required by Rule 12 or 13, undertake or commence a course of study during leave on average pay, and, subject to Rules 15 and 16, draw study allowance in respect thereof, provided that study allowance is not drawn for an aggregate period exceeding two years during the entire service of a Government servant. This rule applies to military officers in civil employment taking leave under the Fundamental Rules.

21. On an application for study leave abroad being sanctioned by a Local Government, it should inform the Ambassador of the particulars of the case. It will be necessary for the Government servant concerned to place himself in communication with the Ambassador, who will arrange any details and issue any letters of introduction that may be required.

[Authority.- Finance Division's Notification No. S.R.O. 923(I)/85, dated 8-9-1985 published in gazette of Pakistan, Extraordinary dated 1-10-1985].

Sl.No. 12

Casual Leave – Grant of Maximum Leave at a Time

Amount of Casual Leave admissible during a calendar year and the maximum at a time. It has been decided that Casual Leave upto a maximum of 20 days in a calendar year may be granted to the staff employed in the offices of the Federal Government.

[Authority.- Home Affairs Division's O.M. No.34/27/48-Public, dated 13-3-1948].

12.1 Grant of Casual Leave at a Time

Under the existing orders, 20 days' Casual Leave is admissible during a calendar year, and the maximum amount that can be allowed at a time is 10 days in the case of members of staff and 15 days in the case of officers. It has now been decided that 15 days' casual leave at a time may be granted to the members of staff also. This rule may be relaxed at the discretion of the Head of Department in special circumstances in the case of officers as well as members of staff.

2. It has also been decided that Ministries, Departments, etc., should be more liberal in the grant of casual leave. Although casual leave cannot be claimed as a matter of right, it should be granted invariably unless the presence of an officer is absolutely necessary e.g. in an emergency or in very extraordinary circumstances.

[Authority.- Home Affairs Division's O.M. No.9/2/53-Public, dated 12-8-1953].

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* Compilation of FR&SR, Vol I, Part IV, Chapter 10. FR 84 read with Appendix 9.

12.2 Spreading of Casual Leave Over Two Years

A question has been raised whether casual leave can be granted within the prescribed limit at one time in such a manner as to spread it over 2 years, i.e. some portion of it in one calendar year and the rest in the following year in one stretch. It has been decided that a Head of Department may grant casual leave in one spell within the prescribed limit so as to debit a part of it against the account of one calendar year and part of it against the account of the following calendar year, provided leave is due. For instance, if a person take 15 days casual leave on the 22nd December and has to his credit 10 days casual leave in that year, there will be no objection if 10 days leave is debited against that credit and the remaining 5 days are debited to the account of the following year. In other words, he would be deemed to have taken 10 days casual leave at the end of that year and 5 days leave in the beginning of the next year.

[Authority.- Home Affairs Division's O.M. No.9/1/56-Public, dated 9-8-1956].

12.3 Combination of Casual Leave with Holidays

Some doubts have been raised regarding the combination of casual leave with holidays. After careful consideration of the matter it has been decided that:

(a) casual leave may be prefixed or suffixed to a closed or optional holiday,

(b) casual leave may be sandwitched in between two closed or optional holidays.

2. However, if a closed or an optional holiday falls between two days of casual leave it should also be counted as a casual leave.

[Authority.- Home Affairs Division's O.M. No.9/1/53-Public, dated 24-4-1953].

12.4 Procedure for Grant of Casual Leave to the Secretaries to the Government and Heads of Departments

A question has been raised as to who should grant leave to Secretaries to the Government of Pakistan.

2. According to item 48 in Appendix 13 of the Fundamental and Supplementary Rules-Volume II, the Ministries have been delegated full powers to grant leave to a gazetted Government servant not in foreign service.

3. In accordance with the above rule, the Secretary as the official head of the Division is empowered to grant leave to his subordinates. It is not, however, clear as to who is the appropriate authority for grant of leave to the Secretaries. Under the Rules of Business, 1973, the Minister, who is the next higher authority, is mainly concerned with policy matters and does not ordinarily pass executive orders himself. Normally, such cases have to be submitted for the President's orders. In order to avoid frequent references to the President, the following procedure has been laid down:-

(i) The Minister-in-Charge may grant casual leave upto 10 days to a Secretary to the Government of Pakistan on behalf of the President and the Establishment Division should be informed in such cases.

(ii) All cases of casual leave beyond 10 days and cases of earned leave upto a period of 1 month will be submitted through the Minister to the President* for orders under intimation to the Establishment Division.

(iii) Leave applications of Secretaries for a period of more than 1 month would be endorsed by the Minister to the Establishment Division for obtaining the President's orders.

4. The above instructions may please be brought to the notice of all concerned for strict compliance.

[Authority.- Estt. Division's O.M.'s No. 23 (I)/69-AI, dated 18-3-1969].

12.5 Procedure for Grant of Casual Leave to Secretaries

Reference Establishment Division's O.M. No. 23(1)/ 69-A.I. dated 18-3-1969. With immediate effect, the following procedure shall be observed for grant of casual leave to a Secretary General, Secretary or Acting Secretary to the Federal Government or to Additional Secretary/Joint Secretary Incharge of a Ministry/Division:-

(i) In cases of leave upto ten days, the Minister-in-Charge may sanction the leave and intimation to that effect given to the Secretary, Establishment Division by the Ministry/Division concerned.

(ii) In cases of leave beyond ten days, the leave application shall be submitted by the Minister-in-Charge to the Prime Minister for orders and if the leave is sanctioned, an intimation to that effect shall be given to the Secretary, Establishment Division by the concerned Ministry/Division.

2. The above instructions may be brought to the notice of all concerned for compliance.

[Authority.- Estt. Division's O.M. No.10/22/83-R. 2, dated 18-11-1985].

12.6 Grant of Casual Leave to Heads of Departments and Subordinate Offices

A reference is invited to the Establishment Division letter No. D-671/ 71-F.I, dated the 13th July, 1971, in which Ministries/ Divisions were requested to inform the Establishment Division about the present practice followed in regard to the method of appropriation of casual leave by the Heads of their Attached Departments and Subordinate Offices. From the replies received, the Establishment

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* Prime Minister.

Division has observed that no uniform practice is being followed in this regard. While some officers appropriate their own casual leave without reference to the Ministry/Division concerned, and take permission only when they have to leave the station, others simply inform the Ministry/Division after the casual leave has been availed of. The question of laying down a uniform policy in this regard has been examined in the Establishment Division and the following instructions are issued for compliance:-

(1) The Heads of Attached Departments/Subordinate Offices should obtain, as far as possible, prior approval of the Ministry/Division concerned before availing themselves of the casual leave, when the purpose thereof could be foreseen in advance.

(2) In case of unforeseen and urgent circumstances when the casual leave is required for one or two days and it is not possible to obtain prior permission, he may avail of the leave and send leave application to the authority concerned immediately, and may also, if possible, inform the authority on telephone.

(3) In special circumstances when even the procedure mentioned at (2) above cannot be followed, the officers should appropriate their own casual leave and inform in writing, the officer concerned in the Ministry/Division as early as possible.

2. As regards the status of officers in the Ministries/Divisions administratively concerned to whom the Heads of Attached Departments/ Subordinate Offices should apply for casual leave, the normal procedure for applying to the next higher officer should be followed. For example, if the Head of the Department/Subordinate Office enjoys the status of Deputy Secretary to the Federal Government or is of equivalent rank, he may apply to the Joint Secretary of the Ministry/Division concerned and so on.

[Authority.- Estt. Division's O.M. No. D-671/71-F.I, dated 29th December, 1972].

12.7 Absence from Office Due to Curfew to be Treated as Casual Leave

During curfew/emergency, such absence should be treated as Casual Leave but not debited to the causal leave account.

[Authority:- Establishment Division's O.M. No.8/2/69-F.1, dated 12-03-1969]

12.8 Grant of Casual Leave Ex-Pakistan

It has been decided that the authority competent to grant leave to a government servant can also permit him to avail himself of casual leave ex-Pakistan in special circumstances subject to the condition that the limit of 20 days casual leave as prescribed is not exceeded.

[Authority:- Home Affairs Division's O.M. No.9/10/54-Public, dated 27-01-1955]

12.9 Grant of Casual Leave to Government Servants Deputed Abroad

According to the administrative instructions in Para V (2) of Appendix 3 of the Fundamental and Supplementary Rules, Volume II, casual leave must not be granted to a government servant so as to cause evasion of the rules regarding return to duty. Similarly, according to Government Order under F.R 51-A, the grant of return passage to Pakistan on conclusion of deputation abroad is conditional on the official's return to duty forthwith on the conclusion of the deputation, unless the arrangement to the contrary effect had been specially permitted at the time the deputation closes, or is about to close, and the proposed leave is begun. A question had been raised as to whether in view of these instructions, the grant of casual leave to a government servant deputed outside Pakistan on temporary official duty or on training, either before the commencement or after the expiry of the sanctioned period of deputation, which, would have the effect of extending his stay outside Pakistan, would be in order. It is clarified that although there is no absolute bar on the grant of casual leave outside Pakistan in such cases, it should, ordinarily be discouraged and should be allowed only in exceptional circumstances.

[Authority:- Finance Division's O.M. No.F.8 (7)-R.2 (Rwp)/61, dated 17-11-1961]

12.10 Grant of Leave to Officers in BPS-22 other than Secretaries and Heads of Departments in BPS-22

The Secretaries of Ministries/Divisions sanction leave to officers in BPS-22 and equivalent, other than Special Secretaries and Heads of Departments in BPS-22, posted under their respective charge.

2. All orders passed in exercise of the powers as delegated, should invariably be endorsed to Establishment Division.

[Authority:- Establishment Division's O.M. No.10/15/2000-R.2, dated 29-10-2001]

***Sl.No.*13**

Grant of Leave to Secretaries, Heads of Departments and Heads of Autonomous/Semi-Autonomous Bodies/Corporations

The following procedure for grant of leave to Secretaries to Federal Government, Heads of Departments and Autonomous Bodies shall be followed:–

(i) All requests for grant of leave on full pay (LFP) including leave ex-Pakistan, to Secretaries of Ministries/Divisions, Heads of Departments in BPS-22, and Heads of Autonomous Bodies in M-I shall be submitted to Minister Incharge of the respective Ministry/Division who will be competent to grant LFP subject to title.

(ii) All requests for leave from officers mentioned at (i), should also suggest specific arrangements for entrusting the work of the Secretary or Head of Department or Autonomous Body, as the

case may be, during the period of leave. The Minister may approve for a maximum period of three months following temporary arrangements for entrusting the work of the officer proceeding on leave to another officer:

(a) current charge of the duties of the post may be given to the most senior officer available within the organization, and

(b) where an officer of an appropriate seniority and background is not available within the organization, the work may be entrusted to another officer of the same status working under the charge of the Minister.

(iii) All requests for grant of LFP to Heads of Departments in BPS-21 and below and Heads of Autonomous Bodies in M-II and M-III, shall be decided by the Secretary of the respective Ministry/ Division.

(iv) All orders passed in exercise of the powers delegated at (i), (ii) and (iii) above should invariably be endorsed to Establishment Division.

[Authority:- Establishment Division's O.M.No. 10/15/2000-R.2, dated 08-04-2000]

13.1 Grant of Leave to Secretaries, Heads of Departments and Heads of Autonomous Bodies

Reference Establishment Division's instructions regarding grant of LFP including leave ex-Pakistan to Secretaries of Ministries/Divisions, Head of Departments in BPS 22 and Heads of Autonomous Bodies in M-I issued vide its OM No. 10/15/2000-R.2, dated 8.4.2000. Sub para (i) of the aforesaid instructions read as under:

"(i) All requests for grant of *LFP including leave ex-Pakistan, to Secretaries of Ministries/Divisions, Head of Departments in BPS 22, and Head of Autonomous Bodies in M-I shall be submitted to Minister Incharge of the respective Ministry/Division who will be competent to grant LFP subject to title".

2. Secretaries of the Ministries/Division concerned are competent to grant LFP to Heads of Departments in BPS 21 and below and Head of Autonomous Bodies in M-II and M-III. Secretaries of the Ministries/Divisions have also been authorized to grant leave to officers in BPS 22 and equivalent other than Heads of Departments in BPS 22 posted under their respective charge vide Division's OM No. 10/15/2000-R-2, dated 29.10.2001.

3. Procedure for visits abroad by government officials has been prescribed separately *vide* Cabinet Division's D.O. Letter No. F.9-148/2002-Min,

dated 19th February, 2003. According to para 2 of the said instructions, visits abroad by the Secretaries/Additional Secretaries Incharge of the Ministries/ Divisions and Head of Autonomous/Semi-Autonomous Bodies and Corporations in MP-I Scale shall require prior approval of the Prime Minister.

4. A question has arisen as to whether *LFP including leave *ex*-Pakistan to Secretaries/Additional Secretaries Incharge of the Ministries and Head of Departments in BPS 22 and Heads of Autonomous Bodies in MP-I Scale shall be granted by the Minister Incharge or such leave would require approval of the Prime Minister.

5. The matter has been considered. It is accordingly clarified that grant of LFP* including leave ex-Pakistan to Secretaries/Additional Secretaries Incharge of the Ministries/Division, Head of Departments in BPS 22 and Head of Autonomous in MP-I Scale shall be granted by the Minister Incharge. Whereas, for official visits abroad only *i.e.* participation in international conferences, meetings, seminars, workshops etc. by the Secretaries/Additional Secretaries Incharge of the Ministries/Divisions, Heads of Department in BPS 22 and Heads of Autonomous Bodies in MP-I Scale, the prior approval of the Prime Minister shall be required.

[Authority:- Estab. Div's OM No. 10/15/2000-R.2., dated 30th March, 2006].

Sl.No. 14

Expeditious Processing of Cases Where a Medical Authority Certified that a Government Servant is Permanently Incapacitated for Service

According to the provisions contained in FR 10-A, the competent authority is empowered to retire, from service, a government servant, if a medical authority certifies that the government servant is permanently incapacitated for further service. The cases of such government servants are to be processed expeditiously. As such, Ministries/Divisions may process such cases expeditiously for seeking orders of the competent authority.

[Authority:- Establishment Division's O.M. No.14/2/95-R.2, dated 18-10-2000]

Sl.No. 15

Employment of Government Servants with NGOs or Private Organizations within Pakistan

Refer to Establishment Division's of even number dated 11-06-2001 on the subject cited above and to state that the competent authority has been pleased to desire that existing policy regarding grant of permission to Government servants to work with NGOs/private sector organizations, firms, establishments or persons on leave/EOL basis allowed through Establishment Division's O.M.No.F.9/4/66-E.5(DMG), dated 11-06-2001 is cancelled forthwith. Further, the Government servants who have already been granted such permission/leave etc. be advised to report back for duty as soon as their

*Leave on Full Pay.

leave/existing contract with private employers expire.

2. Ministries/Divisions are requested to bring the above policy decision in the notice of attached departments/sub-ordinate offices under their administrative control for strict compliance with immediate effect.

[*Authority:*- Establishment Division's O.M.No.F.9/4/99-E.5(DMG) dated 28th August,2002].